

		Plaintiff has not shown this factor supports a finding of substantive unconscionability. For the same reasons, Plaintiff's request that any order granting arbitration be conditioned upon Defendants either paying Plaintiff's share of the arbitration costs and fees up front or waiving their right to arbitration is DENIED. Accordingly, the motion to compel arbitration is GRANTED. Plaintiff's request for judicial notice is DENIED as to Items 1-2 and 4-9. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) Plaintiff's request for judicial notice is GRANTED as to Item 3. (Evid. Code, § 452(h).) The entire action is STAYED pending completion of arbitration. The case management conference set for today is OFF-CALENDAR. A Status Conference re: Status of Arbitration is scheduled for December 4, 2026, at 9:30 a.m. Counsel for Defendants shall give notice.
8	Flicker v. Newport Harbor Post No. 291, of the American Legion	Defendant Newport Harbor Post No. 291, of the American Legion's unopposed Motion to Compel Arbitration and Stay Action is GRANTED. A party seeking to compel arbitration pursuant to Code of Civil Procedure section 1281.2 "has the burden of proving the existence of a valid arbitration clause and the dispute is covered by the agreement." (<i>Larian v. Larian</i> (2004) 123 Cal.App.4th 751, 760.) "If the moving party meets its burden, the opponent of arbitration has to prove by a preponderance of the evidence any defense to the petition or motion to compel the dispute to be arbitrated." (<i>Ibid.</i>) Here, the moving party has submitted two arbitration agreements signed by Plaintiff. The two subject agreements are separate from any other agreements, and are each clearly labelled "DISPUTE RESOLUTION AGREEMENT." Plaintiff has not opposed the motion. The action is ordered to arbitration and is stayed pending its outcome. The case management conference set for today is OFF-CALENDAR. Status conference re selection of arbitrator is set for December 4, 2026, at 9:30 a.m. Moving party to give notice.
9	Stein v. ActBlue Charities, Inc.	Before the Court are two motions. The first is a motion to quash service of summons filed by Defendants ActBlue Charities, Inc., ActBlue Civics, Inc., ActBlue Technical Services, Inc., and ActBlue